

GINSBURG, J., dissenting

prosecutes twice. *Bartkus*, 359 U.S., at 155 (Black, J., dissenting).

2

I turn, next, to further justifications the Court has supplied for the separate-sovereigns doctrine. None should survive close inspection.

a

One rationale emphasizes that the Double Jeopardy Clause originally restrained only the Federal Government and did not bar successive state prosecutions. *Id.*, at 124; *Lanza*, 260 U.S., at 382; *Fox v. Ohio*, 5 How. 410, 434–435 (1847). Incorporation of the Clause as a restraint on action by the States, effected in *Benton v. Maryland*, 395 U.S. 784 (1969), has rendered this rationale obsolete.

b

Another justification is precedent. In adopting and reaffirming the separate-sovereigns doctrine, the Court relied on dicta from 19th-century opinions. See *Abbate*, 359 U.S., at 190–193; *Bartkus*, 359 U.S., at 129–132; *Lanza*, 260 U.S., at 382–384. The persuasive force of those opinions is diminished by their dubious reasoning. See *supra*, at 727–730. While drawing upon dicta from prior opinions, the Court gave short shrift to contrary authority. See Braun, *supra*, at 20–23.

First, the Framers of the Bill of Rights voted down an amendment that would have permitted the Federal Government to re prosecute a defendant initially tried by a State. 1 Annals of Cong. 753 (1789); J. Sigler, Double Jeopardy: The Development of a Legal and Social Policy 30–31 (1969). But cf. *ante*, at 684. Nevermind that this amendment failed; the Court has attributed to the Clause the very meaning the First Congress refrained from adopting.²

²The Court sees this history as poor evidence of congressional intent. See *ante*, at 684. On another day, the Court looked to the First Congress' rejection of proposed amendments as instructive. See *Cook v. Gralike*,